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विश्वविद्यालय अनुदान आयोग

अधिसूचना

नई दिल्ली, 2 मई, 2022

फा. सं. 4-1/2022(IC).—विश्वविद्यालय अनुदान आयोग अधिनियम, 1956 की धारा 26 की उप-धारा (1) की खंड (च) और (छ) द्वारा प्रदत्त शक्तियों का प्रयोग करते हुए और दिनांक 11.07.2016 की राजपत्र अधिसूचना के माध्यम से अधिसूचित किए गए विश्वविद्यालय अनुदान आयोग (भारतीय और विदेशी शैक्षिक संस्थानों के मध्य अकादमिक सहयोग के मानकों की प्रोन्नति एवं अनुरक्षण) विनियम, 2016 का अधिक्रमण करते हुए विश्वविद्यालय अनुदान आयोग, एतद्वारा निम्नलिखित विनियम बनाता है, नामतः -

1. लघु शीर्षक, अनुप्रयोग और प्रवर्तन:-

1.1. इन विनियमों को विश्वविद्यालय अनुदान आयोग (युगल उपाधि, संयुक्त उपाधि और दोहरी उपाधि कार्यक्रमों की पेशकश करने हेतु भारतीय और विदेशी उच्चतर शिक्षा संस्थानों के बीच शैक्षिक सहयोग) विनियम, 2022 (इसके पश्चात् विनियमों कहा जाएगा) कहा जाएगा।

1.2. ये विनियम युगल उपाधि, संयुक्त उपाधि और दोहरी उपाधि कार्यक्रमों की पेशकश करने के लिए भारतीय उच्चतर शिक्षा संस्थानों और विदेशी उच्चतर शिक्षा संस्थानों के बीच शैक्षिक सहयोग के लिए न्यूनतम मानकों का निर्धारण करते हैं।

1.3. ये विनियम निम्न पर पर लागू होंगे-

**UNIVERSITY GRANTS COMMISSION
NOTIFICATION**

New Delhi, the 2nd May, 2022

F. No. 4-1/2022(IC).—In exercise of the powers conferred by clauses (f) and (g) of sub-section (1) of section 26 of the University Grants Commission Act, 1956 and in supersession of the University Grants Commission (Promotion & Maintenance of Standards of Academic Collaboration between Indian and Foreign Educational Institutions) Regulations, 2016 notified vide Gazette Notification dated 11.07.2016, the University Grants Commission hereby makes the following Regulations, namely:-

1. Short title, application and commencement: -

- 1.1. These Regulations may be called the University Grants Commission (Academic Collaboration between Indian and Foreign Higher Educational Institutions to offer Twinning, Joint Degree and Dual Degree Programmes) Regulations, 2022 (hereafter referred to as the Regulations).
- 1.2. These regulations lay down the minimum standards for academic collaboration between Indian Higher Educational Institutions and foreign Higher Educational Institutions to offer Twinning, Joint Degree and Dual Degree Programmes.
- 1.3. These Regulations shall apply to-
 - 1.3.1. Indian Higher Educational Institutions intending to collaborate with Foreign Higher Educational Institutions leading to award of degree(s); and
 - 1.3.2. Foreign Higher Educational Institutions intending to collaborate with Indian Higher Educational Institutions.
- 1.4. These Regulations shall come into force on the date of their publication in the Official Gazette.

2. Definitions: -

- 2.1. “Act” means the University Grants Commission Act, 1956, as amended from time to time;
- 2.2. “Academic Collaboration” means academic partnership between Indian Higher Educational Institution(s) and Foreign Higher Educational Institution(s), put into place through an instrument of written Agreement for the purposes of
 - 2.2.1. Twinning Programme
 - 2.2.2. Joint Degree Programme;
 - 2.2.3. Dual Degree Programme;
- 2.3. “Assessment and Accreditation Agency”, in respect of a Foreign Higher Educational Institution, means an agency or body approved, recognized or authorized by an authority, established or incorporated under a law in its home country or any other statutory authority in that country or member of global network of accreditation bodies for the purpose of assessing, accrediting or assuring quality and standards of Higher Educational Institutions;
- 2.4. “Assessment and Accreditation Agency”, in respect of an Indian Higher Educational Institution, means an agency recognized under the University Grants Commission (Recognition and monitoring of Assessment and Accreditation Agencies) Regulations, 2014;
- 2.5. “Commission” means the University Grants Commission established under section 4 of

the Act;

- 2.6. “Conventional mode” means a mode of providing learning opportunities through face-to-face interaction between the teacher and learner in regular class room environment but does not exclude supplementary instructions if any for the learner through use of online;
- 2.7. “Credit Recognition and Transfer” shall mean ‘Credit’ conferred by a Foreign Higher Educational Institution to be recognised, quantified and included towards the credit requirements for a programme delivered by an Indian Higher Educational Institution solely or jointly with a Foreign Higher Educational Institution and vice versa;
- 2.8. “Degree” means a degree awarded by an Indian Higher Educational Institution in accordance with the provisions of the section 22 of the UGC Act and a Degree awarded by a Foreign Higher Education Institution in accordance with the relevant rules and regulation of respective foreign country;
- 2.9. “Foreign Higher Educational Institution” means a Higher Educational Institution duly established or incorporated or recognised in a foreign country and offering academic and research programmes at the undergraduate and/or higher levels;
- 2.10. “Franchising” for the purpose of these regulations, means and includes the practice of allowing, formally or informally, any person or institution or organisation, other than the Higher Educational Institution recognised under these regulations for offering Twinning, Joint and Dual Degree programmes or any related activity on behalf of or in the name of the recognised Higher Educational Institution, and the terms “franchise” and “franchisee” shall be construed accordingly.
- 2.11. “Indian Higher Educational Institution” means a university within the meaning of Section 2(f) or an institution deemed to be university under Section 3 of the UGC Act, 1956;
- 2.12. “Programme” means educational programmes leading to award of Degree(s) including Post graduate and Doctoral programmes;
- 2.13. “Statutory Body” means a body established or incorporated by or under a Central Act to regulate, coordinate, determine and maintain standards of teaching, examination and research in universities or programme(s) of study, including professional programme(s) leading to the award of degree(s);

3. Provisions of Collaboration: -

Academic Collaboration between Indian and Foreign Higher Educational Institutions under these Regulations shall facilitate the following academic activities: -

3.1. Twinning Programme

- 3.1.1. “Twinning Programme” shall be a collaborative arrangement whereby students enrolled with an Indian Higher Educational Institution may undertake their programme of study partly in India, complying with relevant UGC Regulations, and partly in the Foreign Higher Educational Institution.
- 3.1.2. The degree offered under such twinning programmes shall be awarded by the Indian Higher Educational Institution only.
- 3.1.3. Under twinning programme, credits earned by the students at a Foreign Higher Educational Institution shall be counted towards the degree awarded by the Indian Higher Educational Institution. However, credits earned by the student from the Foreign Higher Educational Institution shall not exceed 30 per cent of the total credits for the

programme.

- 3.1.4. Credits to be earned by the Indian students from the foreign institution and credits earned by the foreign students from Indian institutions shall be obtained through conventional mode.
- 3.1.5. Each institution shall issue a transcript for their respective courses, with a remark indicating that the student has taken certain modules at the partner institution, wherever applicable.
- 3.1.6. The Indian Higher Educational Institution shall ensure that the credits earned by the students from the Foreign Higher Educational Institution shall not be from overlapping course contents/curriculum.
- 3.1.7. Fees as applicable for the entire duration of the programme (including courses imparted by the Foreign Higher Educational Institution) shall be made public at the time of admission. Fee structure should be reasonable so as to make quality Higher Education accessible and affordable to all sections of the society.
- 3.1.8. Any degree to be awarded under such twinning programme must be in conformity with the provisions of section 22 (3) of the UGC Act, 1956 and shall also be in conformity with the norms, standards and requirement for award of such degree, as laid down by the statutory authority concerned.
- 3.1.9. The collaborating Higher Educational Institutions shall make provisions for exit pathways for students who are unable to complete the Twinning programme with clear specification with respect to future acceptance of credits earned by the students.

3.2. Joint Degree Programme

- 3.2.1. For a “Joint Degree programme”, the curriculum shall be designed jointly by the collaborating Indian and Foreign Higher Educational Institutions and, upon completion of the programme, the Degree is awarded by the Indian Higher Educational Institution and the collaborating Foreign Higher Educational Institution with a single Certificate.
- 3.2.2. Any Joint degree programme to be offered shall conform to the nomenclature and duration of the degrees as specified in section 22 (3) of the UGC Act, 1956 and shall also conform to minimum eligibility and other norms and standards to offer such degree programme.
- 3.2.3. The students must earn at least 30 per cent of the total credits from each of the Indian and Foreign Higher Educational Institutions. Credits to be earned by the Indian students from the foreign institution and credits earned by the foreign students from Indian institutions shall be obtained through conventional mode.
- 3.2.4. Credits earned for the course(s) in an institution shall count towards the degrees jointly awarded by both the institutions.
- 3.2.5. The collaborating Higher Educational Institutions shall ensure that the credits earned by the students shall not be from overlapping course contents/curriculum and the student shall submit to only one examination and evaluation process for each of the courses by the institutions in which he/she has registered for that course.
- 3.2.6. In case of a doctoral degree programme, students must have a supervisor at each institution. The student shall spend a minimum of one semester in each of the collaborating institutions during the study programme. However, the student shall submit a single thesis adhering to a framework jointly devised by the participating

institutions.

- 3.2.7. Fees as applicable for the entire duration of the programme (including courses imparted by the Foreign Higher Educational Institution) shall be made public at the time of admission. Fee structure should be reasonable so as to make quality Higher Education accessible and affordable to all sections of the society.
- 3.2.8. Each Higher Educational Institution shall issue a transcript for their respective courses, with a remark indicating that the student has taken certain modules at the partner institution.
- 3.2.9. The collaborating Higher Educational Institutions shall make provisions for exit pathways for students who are unable to complete the Joint Degree programme with clear specification with respect to future acceptance of credits earned by the students.
- 3.2.10. All other provisions related to offering of Joint Degree Programme shall be decided mutually by the participating institutions conforming to the respective rules, regulations and laws of their respective institution and country.

3.3. Dual Degree Programme

- 3.3.1. “Dual Degree Programme” shall be a programme jointly designed and offered by the Indian and Foreign Higher Educational Institutions in the same disciplines/subject areas and in the same level. The degrees for such programme shall be conferred by the Indian and Foreign Higher Educational Institutions, separately and simultaneously, upon completion of degree requirements of both the institutions. This shall not in any way be construed as two degree programmes in separate disciplines/subject areas and/or levels being pursued simultaneously.
- 3.3.2. Under the Dual degree programme, the degrees to be offered by an Indian Higher Educational Institution shall conform to the nomenclature and duration of the degrees as specified in section 22 (3) of the UGC Act, 1956 and shall also conform to minimum eligibility and other norms and standards to offer such degree programme.
- 3.3.3. Prospective students must meet the admission requirements of both the Indian and Foreign Higher Educational Institutions and shall apply to and be admitted separately to both the institutions.
- 3.3.4. The students must earn at least 30 percent of total credits from the Indian institution. Credits to be earned by the Indian students from the foreign institution and credits earned by the foreign students from Indian institutions shall be obtained through conventional mode.
- 3.3.5. Credit earned for the course(s) in an institution shall count towards degrees to be awarded by both the institutions.
- 3.3.6. The collaborating Higher Educational Institutions shall ensure that the credits earned by the students shall not be from overlapping course contents/curriculum; and the student shall submit to only one examination and evaluation process for each of the courses by the institutions in which he/she has registered for that course.
- 3.3.7. In case of a doctoral degree programme, students must have a supervisor at each institution. The student shall spend a minimum of one semester in each of the collaborating institutions during the study programme. However, the student shall submit a single thesis adhering to a framework jointly devised by the participating institutions.

- 3.3.8. Fees as applicable for the entire duration of the programme (including courses imparted by the Foreign Higher Educational Institution) shall be made public at the time of admission. Fee structure should be reasonable so as to make quality Higher Education accessible and affordable to all sections of the society.
- 3.3.9. Each of the Higher Educational Institutions concerned shall issue a transcript for its respective courses, with a remark indicating that the student has taken certain modules at the partner institution.
- 3.3.10. The collaborating Higher Educational Institutions shall make provisions for exit pathways for students who are unable to complete the Dual Degree programme with clear specification with respect to future acceptance of credits earned by the students.
- 3.3.11. All other provisions related to offering of Dual Degree Programme shall be decided mutually by the participating institutions conforming to the respective rules, regulations and laws of their respective institution and country.

4. Conditions for Collaboration: -

- 4.1. The Indian Higher Educational Institutions shall obtain the approval of its appropriate authority, like Board of Governors/Board of Management/Syndicate/Executive Council for academic collaboration with any Foreign Higher Educational Institution.
- 4.2. Indian Higher Educational Institutions shall seek necessary approval from the relevant Statutory Councils/ Bodies before entering into collaboration in technical, medical, legal, agricultural and such other professional programmes.
- 4.3. The Indian Higher Educational Institutions shall abide by the norms prescribed by the Government of India from time to time for collaboration with specific countries.
- 4.4. Academic infrastructure, including laboratory, library and workshop facilities of the Indian Higher Educational Institutions shall meet the requirements of the relevant professional Statutory Councils/ Bodies.
- 4.5. The Indian Higher Educational Institution shall have to enter into a written Memorandum of Understanding or Agreement with its partner Foreign Higher Educational Institution(s) for collaboration. The MoU or Agreement must categorically include the purposes and related provisions of collaboration.
- 4.6. The academic requirements and other details of the programme(s) of study to be offered under collaborative arrangements shall be made public by displaying prominently in the websites of both Indian and Foreign Higher Educational Institutions, before the commencement of such programmes.
- 4.7. Wherever foreign exchange is involved, the Higher Educational Institutions (Indian and foreign), shall abide by and comply with the relevant regulations, norms, notifications and instructions issued by the Reserve Bank of India and Government of India from time to time.
- 4.8. The Indian Higher Educational Institution shall ensure that the programme(s) of study and/or research offered is not against the national security and territorial integrity of India.
- 4.9. The Institutions concerned shall comply with all the provisions of these Regulations and also abide by any other condition(s) specified by the Government of India and Statutory Body (ies) concerned from time to time.

5. Eligibility:

The Indian and Foreign Higher Educational Institutions shall be eligible to offer Twinning, Joint Degree and Dual Degree programmes under these regulations provided they fulfil the following eligibility criteria: -

- 5.1. Any Indian Higher Educational Institution as mentioned in 2.11 which is accredited by National Assessment and Accreditation Council (NAAC) or any other Agency authorised in this behalf, with a minimum score of 3.01 on a 4-point scale at the time of application;
or
which figures in the top 1000 of Times Higher Education or QS World University ranking at the time of application;
or
which figures in the top 100 in university category of National Institutional Ranking Framework (NIRF) at the time of application;
- 5.2. Any Foreign Higher Educational Institution as mentioned in 2.9 figuring in top 1000 of Times Higher Education or QS World University ranking at the time of application.

6. Office for International Affairs: -

The Collaborating Indian Higher Educational Institution shall have an office for International Affairs which shall function as single point of contact, and shall be responsible for carrying out all collaborative activities including, but not limited to:

- 6.1. Liaising with regulatory/statutory bodies;
- 6.2. Working as coordinating agency for all students registered under collaborative arrangements with Foreign Higher Educational Institutions;
- 6.3. Addressing matters related to Indian students proceeding abroad to Foreign Higher Educational Institutions under collaborative arrangements;
- 6.4. Maintaining records and disseminate information related to international collaborations;
- 6.5. Working as the nodal agency for foreign students and coordinate all matters relating to welcoming and supporting foreign students;
- 6.6. Engaging in promotional activities and brand building campaign abroad;
- 6.7. Making information relating to academic collaboration available on the Higher Educational Institution's website and provide the same to Commission whenever asked for.
- 6.8. Addressing the grievances of students, both Indian and foreign, who take admission in programmes offered under these Regulations.

7. Miscellaneous conditions: -

- 7.1. The Degree awarded under these Regulations shall be equivalent to any corresponding degree awarded by the Indian Higher Educational Institution with the following stipulations: (i) there shall be no further requirement of seeking equivalence from any authority; and (ii) the degree shall have all benefits, rights and privileges as obtaining in the case of degree, awarded by an Indian Higher Educational Institution ordinarily.
- 7.2. The programmes offered under these Regulations shall not be allowed in online and ODL mode.
- 7.3. No franchise arrangement/Study Centre, whether overtly or covertly, by whatever nomenclature

used, between a Foreign Higher Educational Institution and an Indian Higher Educational Institution shall be allowed under these Regulations.

- 7.4. An Institution Deemed to be a University under section 3 of the University Grants Commission Act, 1956 shall enter into academic collaboration in accordance with the extant Deemed to be University Regulations and also in compliance with the provisions of these Regulations.
- 7.5. The MoU/Agreement for collaboration shall include provisions related to student obligations, fees and other financial arrangements, intellectual property rights, student's attendance patterns, duration of stay for the study programme in both the Higher Educational Institutions, joint supervision arrangements, language of thesis and examinations, admission and evaluation process and graduation procedures, wherever applicable.
- 7.6. Matters relating to the grievances of students, including legal matters relating to the collaboration shall be addressed by the Indian Higher Educational Institution entering into academic collaboration.
- 7.7. The monitoring shall be done through mandatory public disclosure.
- 7.8. The collaborating Indian Higher Educational Institution shall furnish information regarding the academic collaboration, as required by the Commission from time to time.

8. Consequence of violations: -

- 8.1. If the Indian Higher Educational Institution concerned is found to have violated these Regulations, the Commission shall take action as provided under section 14 of the Act and shall also notify on its website and also through media that the programme(s) offered or conducted through the said collaborative arrangements are not in conformity with these Regulations.
- 8.2. The Commission may also take further action as prescribed against Indian Higher Educational Institution(s) for violating these Regulations.

9. Interpretation: -

- 9.1. Any question as to the interpretation of these Regulations shall be decided by the Commission and its decision shall be final and binding in the matter.
- 9.2. Any dispute arising in relation to collaborative arrangement between Indian and Foreign Higher Educational Institution(s) shall be governed by the Indian law.

10. Power to remove difficulty:-

- 10.1. If any difficulty arises in implementation or in giving effect to the provisions of these Regulations, the Commission may by an order published in the official gazette make provisions, not inconsistent with the provisions of the UGC Act, 1956 or these Regulations, as may appeared to be necessary or expedient for removing the difficulty.

Provided that no order under this provision shall be made by the Commission after the expiry of a period of two years from the date of coming into force of these Regulations.

Prof. RAJNISH JAIN, Secy.

[ADVT.-III/4/Exty./57/2022-23]